

Seller's Disclosure Statement

Property address: _____

Street

City, Village, or Township

MICHIGAN

Purpose of Statement: This statement is a disclosure of the condition of the property in compliance with the Seller Disclosure Act. This statement is a disclosure of the condition and information concerning the property, known by the Seller. Unless otherwise advised, the Seller does not possess any expertise in construction, architecture, engineering or any other specific area related to the construction or condition of the improvements on the property or the land. Also, unless otherwise advised, the Seller has not conducted any inspection of generally inaccessible areas such as the foundation or roof. **This statement is not a warranty of any kind by the Seller or by any Agent representing the Seller in this transaction, and is not a substitute for any inspections or warranties the Buyer may wish to obtain.**

Seller's Disclosure: The Seller discloses the following information with the knowledge that even though this is not a warranty, the Seller specifically makes the following representations based on the Seller's knowledge at the signing of this document. Upon receiving this statement from the Seller, the Seller's Agent is required to provide a copy to the Buyer or the Agent of the Buyer. The Seller authorizes its Agent(s) to provide a copy of this statement to any prospective Buyer in connection with any actual or anticipated sale of property. The following are representations made solely by the Seller and are not the representations of the Seller's Agent(s), if any. **THIS INFORMATION IS A DISCLOSURE ONLY AND IS NOT INTENDED TO BE A PART OF ANY CONTRACT BETWEEN BUYER AND SELLER.**

Instructions to the Seller: (1) Answer ALL questions. (2) Report known conditions affecting the property. (3) Attach additional pages with your signature if additional space is required. (4) Complete this form yourself. (5) If some items do not apply to your property, check NOT AVAILABLE. If you do not know the facts, check UNKNOWN, FAILURE TO PROVIDE A PURCHASER WITH A SIGNED DISCLOSURE STATEMENT WILL ENABLE A PURCHASER TO TERMINATE AN OTHERWISE BINDING PURCHASE AGREEMENT.

Appliances/Systems/Services: The items below are in working order. (The items listed below are included in the sale of the property only if the purchase agreement so provides.)

	Yes	No	Unknown	Not Available		Yes	No	Unknown	Not Available
Range/Oven	☐	☐	☐	☐	Lawn sprinkler system	☐	☐	☐	☐
Dishwasher	☐	☐	☐	☐	Water heater	☐	☐	☐	☐
Refrigerator	☐	☐	☐	☐	Plumbing system	☐	☐	☐	☐
Water softener/ conditioner	☐	☐	☐	☐	Hood/fan	☐	☐	☐	☐
Disposal	☐	☐	☐	☐	Well & pump	☐	☐	☐	☐
TV antenna, TV rotor & controls	☐	☐	☐	☐	Septic tank & drain field	☐	☐	☐	☐
Electrical system	☐	☐	☐	☐	Sump pump	☐	☐	☐	☐
Garage door opener & remote control	☐	☐	☐	☐	City water system	☐	☐	☐	☐
Alarm system	☐	☐	☐	☐	City sewer system	☐	☐	☐	☐
Intercom	☐	☐	☐	☐	Central air conditioning	☐	☐	☐	☐
Central vacuum	☐	☐	☐	☐	Central heating system	☐	☐	☐	☐
Attic fan	☐	☐	☐	☐	Wall Furnace	☐	☐	☐	☐
Pool heater, wall liner & equipment	☐	☐	☐	☐	Humidifier	☐	☐	☐	☐
Microwave	☐	☐	☐	☐	Electronic air filter	☐	☐	☐	☐
Trash compactor	☐	☐	☐	☐	Solar heating system	☐	☐	☐	☐
Ceiling fan	☐	☐	☐	☐	Fireplace & chimney	☐	☐	☐	☐
Sauna/hot tub	☐	☐	☐	☐	Wood burning system	☐	☐	☐	☐
Washer	☐	☐	☐	☐	Dryer	☐	☐	☐	☐

Explanations (attach additional sheets if necessary): _____

UNLESS OTHERWISE AGREED, ALL HOUSEHOLD APPLIANCES ARE SOLD IN WORKING ORDER EXCEPT AS NOTED, WITHOUT WARRANTY BEYOND DATE OF CLOSING.

Property conditions, improvements & additional information:

- Basement/Crawlspace:** Has there been evidence of water? yes ☐ no ☐
If yes, please explain: _____
- Insulation:** Describe if known: _____
Urea Formaldehyde Foam Insulation (UFFI) is installed? unknown ☐ yes ☐ no ☐
yes ☐ no ☐
- Roof:** Leaks?
Approximate age if known: _____
- Well:** Type of well (depth/diameter, age and repair history, if known): _____
Has the water been tested? yes ☐ no ☐
If yes, date of last report/results: _____
- Septic tanks/drain fields:** Condition if known: _____
- Heating system:** Type/approximate age: _____

BUYERS INITIALS _____
SELLERS INITIALS _____

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7. **Plumbing system:** Type: copper ☐ Street ☐ galvanized ☐ other ☐

Any known problems? _____

8. **Electrical system:** Any known problems? _____

9. **History of infestation,** if any: (termites, carpenter ants, etc.) _____

10. **Environmental problems:** Are you aware of any substances, materials or products that may be an environmental hazard such as, but not limited to, asbestos, radon gas, formaldehyde, lead-based paint, fuel or chemical storage tanks and contaminated soil on property.

unknown ☐ yes ☐ no ☐

If yes, please explain: _____

11. **Flood Insurance:** Do you have flood insurance on the property? unknown ☐ yes ☐ no ☐

12. **Mineral Rights:** Do you own the mineral rights? unknown ☐ yes ☐ no ☐

Other Items: Are you aware of any of the following:

1. Features of the property shared in common with the adjoining landowners, such as walls, fences, roads and driveways, or other features whose use or responsibility for maintenance may have an effect on the property? unknown ☐ yes ☐ no ☐
2. Any encroachments, easements, zoning violations or nonconforming uses? unknown ☐ yes ☐ no ☐
3. Any "common areas" (facilities like pools, tennis courts, walkways, or other areas co-owned with others), or a homeowner's association that has any authority over the property? unknown ☐ yes ☐ no ☐
4. Structural modifications, alterations, or repairs made without necessary permits or licensed contractors? unknown ☐ yes ☐ no ☐
5. Settling, flooding, drainage, structural, or grading problems? unknown ☐ yes ☐ no ☐
6. Major damage to the property from fire, wind, floods, or landslides? unknown ☐ yes ☐ no ☐
7. Any underground storage tanks? unknown ☐ yes ☐ no ☐
8. Farm or farm operation in the vicinity; or proximity to a landfill, airport, shooting range, etc? unknown ☐ yes ☐ no ☐
9. Any outstanding utility assessments or fees, including any natural gas main extension surcharge? unknown ☐ yes ☐ no ☐
10. Any outstanding municipal assessments or fees? unknown ☐ yes ☐ no ☐
11. Any pending litigation that could affect the property or the Seller's right to convey the property? unknown ☐ yes ☐ no ☐

If the answer to any of these questions is yes, please explain. Attach additional sheets, if necessary: _____

The Seller has lived in the residence on the property from _____ (date) to _____ (date).

The Seller has owned the property since _____ (date).

The Seller has indicated above the condition of all the items based on information known to the Seller. If any changes occur in the structural/mechanical/appliance systems of this property from the date of this form to the date of closing, Seller will immediately disclose the changes to Buyer. In no event shall the parties hold the Broker liable for any representations not directly made by the Broker or Broker's Agent.

Seller certifies that the information in this statement is true and correct to the best of Seller's knowledge as of the date of Seller's signature.

BUYER SHOULD OBTAIN PROFESSIONAL ADVICE AND INSPECTIONS OF THE PROPERTY TO MORE FULLY DETERMINE THE CONDITION OF THE PROPERTY. THESE INSPECTIONS SHOULD TAKE INDOOR AIR AND WATER QUALITY INTO ACCOUNT, AS WELL AS ANY EVIDENCE OF UNUSUALLY HIGH LEVELS OF POTENTIAL ALLERGENS INCLUDING, BUT NOT LIMITED TO, HOUSEHOLD MOLD, MILDEW AND BACTERIA.

BUYERS ARE ADVISED THAT CERTAIN INFORMATION COMPILED PURSUANT TO THE SEX OFFENDERS REGISTRATION ACT, 1994 PA 295, MCL 28,721 TO 28.732 IS AVAILABLE TO THE PUBLIC. BUYERS SEEKING SUCH INFORMATION SHOULD CONTACT THE APPROPRIATE LOCAL LAW ENFORCEMENT AGENCY OR SHERRIF'S DEPARTMENT DIRECTLY.

BUYER IS ADVISED THAT THE STATE EQUALIZED VALUE OF THE PROPERTY, PRINCIPAL RESIDENCE EXEMPTION INFORMATION, AND OTHER REAL PROPERTY TAX INFORMATION IS AVAILABLE FROM THE APPROPRIATE LOCAL ASSESSOR'S OFFICE. **BUYER SHOULD NOT ASSUME THAT BUYER'S FUTURE TAX BILLS ON THE PROPERTY WILL BE THE SAME AS THE SELLER'S PRESENT TAX BILLS. UNDER MICHIGAN LAW, REAL PROPERTY OBLIGATIONS CAN CHANGE SIGNIFICANTLY WHEN PROPERTY IS TRANSFERRED.**

Seller _____ Date _____

Seller _____ Date _____

Buyer has read and acknowledges receipt of this statement.

Buyer _____ Date _____ Time _____

Buyer _____ Date _____ Time _____

Disclaimer: This form is provided as a service of the Midland Board of REALTORS®. Please review both the form and details of the particular transactions to ensure that each section is appropriate for the transaction. The Midland Board of REALTORS® is not responsible for the use or misuse of the form for misrepresentation of for warranties made in connection with the form.